

Sarpati Prasad vs Jagaram (Died) Mst. Jukuni on 5 May, 2016

SA-548-2016
(SARPATI PRASAD Vs JAGARAM (DIED) MST. JUKUNI)

05-05-2016

Shri R.K. Samaiya, counsel for the appellants.

Heard on question of admission.

The appeal seems to be arguable, hence admitted for hearing on the following substantial questions of law:

"1. Whether the case of the appellant is covered by the decision of the Supreme Court reported case AIR 2010 SC 268 in which the scope of Section 16(3) of Hindu Marriage Act was considered holding that illegitimate son has only the right in the property of his alleged so called father but not in the property of others nor in the ancestral property while it is fully proved that plaintiff is claiming his property of Lakhandhari and Gangaram?

2. Whether the First Appellate Court totally ignored that plaintiff has failed to prove his case as pleaded i.e. the property in dispute is ancestral property and Radhia was legally married wife and when both Courts rightly held that it is not the ancestral property nor it is held that Radhia was the legally married wife. In absence of custom pleaded by Plaintiff, besides the issue of customs is also not proved as such?"

Issue notice of this appeal along with the following substantial questions of law to the respondents on payment of process fee within

seven days by RAD mode. Notices be made returnable within three weeks.

Also heard on IA No. 6130/2016. Issue notice of this application to the respondents on payment of process fee within seven days by RAD mode. Notices be made returnable within three weeks.

In the meantime, the effect and operation of impugned judgment and decree shall remain stayed, till the next date of hearing.

Let records of the Courts below be called for. C.C. as per rules.

(NANDITA DUBEY) JUDGE rss